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43030 Professional Practice in Computing - Assessment Task 2: An Ethical Dilemma

To: DesignR Management Team

Cc:_____

Bcc:_____

Subject: Request to review consent and ICIP risks before scaling the AI-generated imagery line

Dear Management Team,

I am writing about the AI-generated Indigenous imagery we are preparing for the stock libraries. I understand the pressure: commissioned work has fallen, we need stock-library income, and our research found real demand. My concern is that scaling before we resolve consent could cost more than that revenue is worth.

Current safeguards leave a gap around consent

Our literature research, cultural descriptions, disclaimers, donation program and rights-managed licensing are all useful controls, but each was developed without direct Indigenous participation. The AIATSIS Code of Ethics (2020) is written for research, not commercial design, but is a useful benchmark: its principles include Indigenous self-determination and leadership, meaning genuine decision-making responsibility. Background reading builds knowledge but is not the same as engaging with relevant communities or custodians. The donation is a genuine attempt at benefit sharing, but True Tracks (Janke, 2021) treats Consent and Consultation and Benefit Sharing as distinct principles, and one does not substitute for the other.

What the generator may reproduce

Staff discomfort with producing this work signals the sensitivity involved. Meta's Emu model was trained on roughly 1.1 billion publicly visible Facebook and Instagram images (Edwards, 2023). That does not establish whose work was included; separately, Wilson (2024) reports Indigenous artists' concerns that AI models are trained on their work without permission. Using a generator may reproduce those risks rather than remove them.

With our current expertise we may not screen outputs reliably for community-specific restrictions, having no Indigenous staff or community relationships. Our licence also lets purchasers edit the work, so our cultural notes may not stay attached.

Impact on communities and on DesignR

The demand our research identified could instead create licensing opportunities for Indigenous artists. High-volume AI imagery could undercut that while stripping the symbolism of its context. UNDRIP Article 31 (United Nations, 2007) recognises Indigenous peoples' right to maintain, control, protect and develop their cultural heritage and cultural expressions.

Government agencies and global organisations are among our high-profile clients, and culturally unsafe work could damage that trust. Birubi Art involved misleading provenance claims, unlike our disclosed AI images, but its $2.3 million penalty (ACCC, 2019) shows the consequences of inaccurate provenance in Indigenous art markets. The ACS Code of Professional Ethics (2023) separately asks us to minimise harm to stakeholders and respect others' intellectual property. Against that, consultation and review would raise cost and slow production, though a more credible offering could differentiate us.

What I would recommend

I recommend we pause before scale-up while these issues are reviewed. A pause is easy to reverse now; withdrawal is much harder once images are licensed and adapted. We should first seek advice on whether an output draws on identifiable community-specific material, and if so, identify the relevant custodians and agree a consultation process. Commissioning and licensing directly from Indigenous artists, with attribution and royalties, may be the stronger long-term option.

Longer term, I recommend a standing ICIP protocol covering identification, consultation and consent, attribution, benefit sharing and escalation of restricted material, supported by a paid Indigenous advisory mechanism and a role accountable for pre-publication sign-off.

I am happy to help coordinate a draft with an ICIP specialist.

Kind regards,

Harsheet Singh Choudhary

Designer, DesignR

[If using assistive technology, message ends here. Email signature below.]

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References

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